

Ridehalgh & Associates, LLC

Attorneys at Law

Ronald L. Ridehalgh
Tyler Beach
Kylie Cin
Gabriel Walsh
Angus Dunlavey
Joe Metcalfe

180 East Main Street, Suite 210
Hillsboro, Oregon 97123
Facsimile (503) 693-7204
Phone (503) 693-7505
myfamilyfirm.com

Ryan Lhotsky
Matthew P. Crusen
Toni Gonzalez
Adelaide Beeman-White
Alexandria Stanton-Campos
Caitlin Schaeffer

July 28, 2026

Dear Almira,

This is what I believe your question to be: *Why does the court have jurisdiction over your case and the ability to affect your mother's parental rights even though she insists she was not served and is able to appear through writing?*

ODHS initiated this case when they filed their Dependency Petition on September 8, 2025. Under Oregon's Juvenile Code, the juvenile court may assert dependency jurisdiction over a parent's child only after the parent or guardian has been served with the summons and dependency petition in accordance with the procedures set forth in the code consistently with due process. See ORS 419B.812(6). **The only exception is when "the child or ward is before the court" and "diligent efforts have failed to reveal the identity or whereabouts" of the parent. See ORS 419B.914.**

Due process standards set forth in ORS 419B.823 "requires that interested parties receive 'notice reasonably calculated, under all circumstances, to apprise them of the pendency of the action and afford them an opportunity to present their objections.'" *K.L.*, 272 Or App 216, 223, 355 P3d 926 (2015) (quoting finding in *Mullane v. Cent. Hanover Bank & Trust Co.*, 339 US 306, 314, 70 S Ct 652, 94 Led 865 (1950). "The notice required will vary with circumstances and conditions." *K.L.*, 272 Or App at 223-24 (quoting *Walker v. City of Hutchinson, Kan.*, 352 US 112, 115, 77 S Ct 200 (1956). The court held in *Dept of Human Services v. K.L.* **that service of the summons and dependency petition by email and posting at the parents' residence, although not one of the methods of service enumerated in Oregon's Juvenile Code, satisfied due process under the circumstances.**

Similarly to ORCP 7D, ORS 419B.823 and ORS 419B.824 list specific methods of service that meet the reasonable-notice standard of adequate service. *K.L.*, 272 Or App at 222-23. Primarily, service is achieved through "personal service" by hand delivery to the person to be served. ORS 419B.823(1); ORS 419B.824(1). Also permitted modes of service are "service by mail." The Juvenile Code permits "service by mail" by mailing a copy of the summons and petition to the person by first-class mail and another copy of the summons and petition to the person "by certified or registered mail, return receipt requested, or by express mail." ORS 419B.824(4); ORS 419B.823(4). Keep in mind the overall rule regarding service in ORS 419B.823 and clarified by the Oregon Court of Appeals, **service is valid if it is made "in a**

manner reasonably calculated under all the circumstances to apprise the person served of the existence and pendency of the juvenile proceeding and to afford the person a reasonable opportunity to appear.” See K.L., 272 Or App at 225.

You were served a summons through personal service on September 8, 2025, at the shelter hearing when you were handed the document in your files saved as “2025-09-08 – Proof of Service.” Your Dad was in custody at the Washington County Jail at the time of our shelter hearing and didn’t receive personal service then. Instead, he was personally served on September 19, 2025, while he was in custody and the document saved as “2025-09-22 – Proof of Service” shows that. Obviously, your Mom was not at the shelter hearing and wasn’t in custody to be served while in jail. Therefore, ODHS had to continue to make diligent efforts to provide Mom *notice reasonably calculated, under all circumstances, to apprise them of the pendency of the action and afford them an opportunity to present their objections.*

When analyzing the actual facts of this case to answer whether or not your Mom was legally served and the court has jurisdiction over her, you should understand the legal term “actual notice.” Black’s Law Dictionary defines “actual notice” as direct, personal knowledge of a fact or legal matter. Actual notice occurs when information is explicitly communicated or brought directly to a person’s attention, as opposed to *constructive notice*, which is a legal fiction where the law presumes notice even if it wasn’t actually received. Your Mom seems to be arguing that she’s only been provided *constructive notice* of the juvenile dependency matter. Constructive notice is not a thing.

On October 14, 2025, your Mom filed two pleadings with the court in this dependency case. Those pleadings are saved in your files as “2025-10-14 – Mother’s Declaration” and “2025-10-14 – Mother’s Declaration.2.” When your Mom files pleadings into a case but also claims she has not been notified of that case’s existence we’re presented with a formal fallacy: *If Mom is filing pleadings into a case, how does she not have **actual notice** of that case?* These two things can’t be true at the same time.

Some more context for you to consider when thinking about this issue is Oregon separates their circuit courts’ functions typically two ways. There is the criminal court which follows the rules of *criminal procedure* (ORS or Oregon Revised Statutes), and there is the civil court which follows the rules of *civil procedure* (ORCP or Oregon Rules of Civil Procedure). A criminal case is self-explanatory and the criminal court handles adult and juvenile crimes. Juvenile judges are in charge of hearing juvenile criminal cases and juvenile dependency cases. Juvenile dependency, the arena our case is in, is a *civil matter* instead of a *criminal matter*. Other civil matters are divorces, child custody, a personal injury suit, or a dispute about a deceased’s will. However, all of the statutes and rules I’ve cited in this letter are all in the Oregon Revised Statutes or “ORS.” Despite Juvenile Dependency being considered a *civil matter* the Oregon Rules of Civil Procedure do not apply and instead Juvenile Dependency has it’s own procedural rules. Juvenile Dependency’s rules regarding service draw from ORCP 7 but are not the same rules. Your Mom’s pleadings argue improper notice citing ORCP when she did receive actual notice under juvenile dependency court rules. Again, if anything, your Mom’s declarations clearly indicate she is aware of these proceedings and does not understand what rules are actually applicable.

So, at our hearing on October 14, 2025, it was established that your Dad was personally served at the jail, therefore he received notice and at the same hearing he admitted allegations 2D and 2E in the petition **which then gave the court jurisdiction over your father**. At this point despite your Mom having *actual notice* of the dependency case, the court **did not have jurisdiction over her**. For the court to establish jurisdiction over your Mom, ODHS still had to show that: 1. Mom received legal notice of the matter; 2. ODHS made diligent efforts to provide Mom legal notice of the matter; and 3. that despite these diligent efforts Mom is still unable to be served.

Up to this point, ODHS had been trying to serve your Mom at her last known address of 17458 NW Springville Road, Apt. 9, Portland, OR 97229, from September 30 through October 2, 2025, but were unable to. Apparently, the only person answering the door was a male who would not provide his name but is described as “a 50 year old, male, African American, 6 foot, 240lbs., bald, no glasses” who said “no one named Ashle Penn was living there.” All of this information is from the file titled “2025-10-21 – Return of Non-Service.” That *Return of Non-Service* coupled with ODHS’ *Declaration of Diligent Efforts*, was ODHS satisfying the requirement to show they made diligent efforts to serve your Mom. This declaration is saved in your files as, “2025-10-21 – Declaration of Diligent Efforts toward Service.” At this point, Mom has established the jurisdictional requirement of *having notice of the matter* by filing motions in the same matter she argues she wasn’t made aware of.

Prior to our hearing on October 31, 2025, ODHS filed what is in your files as “2025-10-28 – Affidavit Re. Efforts to Serve Parent.” This affidavit, if believed by the judge, would satisfy the final two requirements that ODHS make diligent efforts to provide Mom legal notice, and that despite the diligent efforts, Mom still hasn’t been served. Before, per the “2025-10-21 – Declaration of Diligent Efforts toward Service,” ODHS just sent a process server to your Mom’s last known address on NW Springville Road, but people move all the time so that’s not enough for diligent efforts. But the October 28th affidavit describes diligent efforts such as calling all possible known numbers for Mom; leaving voicemails for Mom; trying to meet her in person at her last known address; actually speaking with your mom on September 6, 2025, about driving Mom to come see you and your Mom saying she would call back about that but never did; searching government records for any other possible address for your Mom; emailing Mom at her last known email addresses; attempting to make contact with Mom in person at all of her last known addresses; etc. This absolutely shows ODHS making the required diligent efforts and Mom still is saying she wasn’t served (despite filing into the case and attempting to appear via telephone in the case).

ODHS also sent a letter to the court explaining the same efforts on October 30, 2025. This letter is saved in your files as “2025-10-30 – ODHS Letter Re. Service Efforts.” This letter outlines your Mom having actual notice of these proceedings considering her conversations with ODHS declining to participate unless her demands are met. That’s not how this works. So, leading up to our hearing on October 31, 2025, the court has established jurisdiction over your Dad because 1. he was personally served notice on September 19, 2025, at the jail; and 2. he admitted to issues that place you in a threat of harm (2D and 2E in the petition). So now the court has jurisdiction to order your Dad to participate in classes to fix the threats of harm to you he admitted to. As for your Mom at this point it has been established through her contact with the court and pleadings filed in this case she has *actual notice*. ODHS has filed their

documents outlining all of the *diligent efforts* toward service, and therefore the Court/ Judge Rini found that 1. Mom does have actual notice of the proceedings, had an opportunity to participate and declined to, and 2. that ODHS has made reasonable efforts to serve Mom. Then at the same hearing now that it has been found that Mom does have notice of that day's (October 31, 2025) trial which she is required to appear at personally but failed to. Therefore, because Mom had notice but did not appear, ODHS is able to request a default judgment against your Mom. A *default judgment* is a binding court decision in favor of the plaintiff (ODHS) when the defendant (Mom) fails to respond to a court summons, misses a required filing deadline, or fails to appear in court. Here your mom failed to respond to a court summons and failed to appear in court.

At that point, ODHS requested a default judgment against your Mom after showing she had actual notice, diligent efforts were made and she still did not show up in-person as she's required to contest the allegations. Per ORS 419B.816(2) a parent of the child who is the subject of a dependency petition must appear personally before the juvenile court when properly summoned and ordered to do so. ONLY when a parent's circumstances do not permit him or her to appear personally, the parent may file a timely written motion demonstrating good cause for the party to be allowed to appear by an alternative method, including by telephone or other electronic means. See ORS 419B.918(1). **If the parent fails to appear as ordered or otherwise allowed, the court may assert dependency jurisdiction over the parent's child or otherwise make orders affecting the parent's legal and physical custody of the child without further notice of the parent either on the date of the jurisdictional trial (October 31, 2025) or on a future date. See ORS 419B.815(7).** Now you are in the temporary custody of ODHS and they are in charge of where you go, who you live with, etc. until they have a safe parent to return you to. This means they have no reason to know whether it is safe at wherever your Mom lives and without your Mom speaking with them, providing them information and allowing them to see where you would potentially be living, they're not going to place you with her. So your Mom isn't required to allow ODHS in her home but then ODHS isn't required to see if your Mom is a safe parent to place you with.

I hope this helps explain why the court does have valid legal jurisdiction over your Mom and why she would have to let ODHS see her home before placing you there. If you have questions, please let me know.

Thank you,



Ryan Lhotsky; OSB No. 201073

Dep't of Human Servs. v. K.L. (In re A.S.L.)

Court of Appeals of Oregon

May 8, 2015, Submitted; July 8, 2015, Decided

A158194

Reporter

272 Ore. App. 216 *, 355 P.3d 926 **

In the Matter of A. S. L., a Child. DEPARTMENT OF HUMAN SERVICES, Petitioner-Respondent, v. K. L. and J. R. L., Appellants.

Prior History: 140858J. Clackamas County Circuit Court. Petition Numbers 140858J01, 140858J02. Susie L. Norby, Judge.

Dep't of Human Servs. v. K.L. (In re A.S.L.), 271 Ore. App. 590, 354 P.3d 774, 2015 Ore. App. LEXIS 682 (2015)

Disposition: Affirmed.

Counsel: Peter Gartlan, Chief Defender, and Shannon Storey, Juvenile Appellate Section Chief Deputy, Office of Public Defense Services, filed the brief for appellant K. L.

Megan L. Jacquot filed the brief for appellant J. R. L.

Ellen F. Rosenblum, Attorney General, Anna M. Joyce, Solicitor General, and Peenesh H. Shah, Assistant Attorney General, filed the brief for respondent.

Judges: Before Armstrong, Presiding Judge, and Nakamoto, Judge, and Egan, Judge.

Opinion by: ARMSTRONG

Opinion

[926] [*218] ARMSTRONG, P. J.**

Father and mother appeal a judgment in which the juvenile court asserted jurisdiction over their 16-year-old son. The substance of parents' appeal is that the juvenile court erred by entering the jurisdictional judgment because the Department of Human Services (DHS) had not properly served parents with summons, as DHS was required to do for the juvenile court to enter a jurisdictional **[**927]** judgment. DHS responds that parents were properly served under ORS 419B.823, positing that service of summons is adequate under that statute if it meets the requirements of the Due Process Clause of the Fourteenth Amendment to the United States Constitution. We conclude that parents were properly served with the summons and, consequently, that the juvenile court did not err in entering the jurisdictional judgment.

The relevant facts are procedural and uncontested. DHS filed a dependency petition, in August 2014, that alleged jurisdiction over the child. DHS alleged in the petition that parents were using controlled substances, that they were not providing the child with stable housing, that the child did not live in a safe environment, and that parents were not meeting the child's behavioral needs. Shortly after DHS filed the petition, father agreed to participate in a number of programs designed to improve his parenting skills. The state consequently moved to dismiss the dependency petition, and the juvenile court entered a judgment of dismissal.

DHS subsequently filed a second dependency petition, and the juvenile court held a shelter-care hearing. At that time, Garrett, the DHS caseworker assigned to child's case, submitted an affidavit stating that father was no longer

participating in services, that someone had erected barriers to prevent people from reaching parents' home by car, that no one could be found at parents' home, and that someone had placed a handmade sign outside of parents' home stating, "Go Away. You're not Welcome. Bye!!! Be Gone! Keep Out!" DHS had also learned that the child had missed the previous week of school. Based on those and other facts, the juvenile court awarded DHS temporary custody of the child. Hoping to locate the child, DHS sent father an email note **[*219]** at an email address at which father had previously communicated with Garrett. Father responded to the DHS note with an email note in which he said that he would not make the child available to DHS because "[w]e signed [the child's] custody over to someone else prior to [the shelter-care hearing,] which supersedes your court order."

When DHS was unable to find the child, it asked the juvenile court to issue a warrant under ORS 419B.842¹ for father's arrest.² Garrett gave the juvenile court additional information at a hearing on that request. First, she testified that she had not had any communication with parents since receiving father's e-mail note in which father had said that he would not cooperate with DHS. She also testified that there was evidence that parents were hiding the child in Goldendale, Washington—viz., parents had used food stamps in Goldendale and one of the child's friends had told a school teacher that child had sent the friend a text message that said that the child was in Goldendale.

The juvenile court asked at the hearing whether DHS had served parents with summons in the case. DHS responded that it had not done that, which led the juvenile court to conclude that it lacked authority to issue an arrest warrant because father had not "actually been court-ordered * * * to do anything." Consequently, the juvenile court agreed to "issue an order directing [father] to appear before this Court with the child" so that if father "does [not] show * * * then I will issue a warrant." The juvenile court also directed DHS to send the order "via mail, first class and certified" and to "send a sheriff out [to parents' home] to try to serve personally, and post it on [father's] sign. * * * Then if he does [not] appear on the date and time set, we [have] given him the best **[*220]** notice possible." The juvenile court issued the order, and DHS subsequently submitted a sworn affidavit stating that copies of **[*928]** the order and summons had been mailed to parents.

Parents failed to appear or bring child to court on the day that they had been ordered to appear, and DHS asked the juvenile court to issue a warrant. In support of that request, Garrett testified to the following. Before the hearing, Garrett mailed copies of the order, summons, and dependency petition to parents' home. Garrett also sent father an email note, which she asked father to forward to mother, and which included copies of the order, summons, and petition. Additionally, Garrett went with a deputy sheriff to parents' home and posted copies of the order, summons, and petition on the door of the home. While she was doing that, Garrett saw that there were pets at parents' home, and parents' neighbors told Garrett that they often saw parents visiting their home late at night. The juvenile court concluded that DHS had satisfied the conditions of ORS 419B.842, which allows a court to issue an arrest warrant when a person fails to obey a court summons, and the juvenile court issued a warrant for father's arrest.

The juvenile court held a subsequent hearing that parents did not attend. At that hearing, the juvenile court concluded that it had jurisdiction over the child and that both mother and father had been properly summoned to the hearing. The juvenile court entered a jurisdictional judgment, and parents now appeal the judgment.

To provide context for the parties' arguments, we begin with a brief overview of the statutory framework for service of summons in dependency cases. ORS 419B.815(1) provides that a "court may make an order establishing

¹ ORS 419B.842 provides:

"(1) No person required to appear as provided in ORS 419B.812 to 419B.839 shall without reasonable cause fail to appear or, where directed in the summons, to bring the child before the court.

"(2) If the summons cannot be served, if the person to whom the summons is directed fails to obey it or if it appears to the court that the summons will be ineffectual, the court may direct issuance of a warrant of arrest against the person summoned or against the child."

² DHS asked the juvenile court to issue an arrest warrant for father only because a warrant for mother's arrest had already been issued in an unrelated criminal case.

jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition as provided in * * * [ORS] 419B.823 [and] 419B.824." ORS 419B.823 provides, in turn:

"The summons must be served, either inside or outside of the state, in a manner reasonably calculated under all the circumstances to apprise the person served of the existence and pendency of the juvenile proceeding and to afford the person a reasonable opportunity to appear. Service of summons may be made, subject to the restrictions and requirements of ORS 419B.824, by the following methods:

[*221] "(1) Personal service of the summons and petition upon the person to be served;

"(2) Substituted service by leaving a copy of the summons and petition at a person's dwelling house or usual place of abode;

"(3) Office service by leaving the summons and petition with a person who is apparently in charge of an office;

"(4) Service by mail; or

"(5) Alternative service as ordered by the court under ORS 419B.824(5)."

Finally, ORS 419B.824(1) to (5) provides instructions on the steps required to serve a party with summons under each of the service methods listed in ORS 419B.823(1) to (5).

Parents seek to have the jurisdictional judgment reversed. They raise four assignments of error; however, they present a single combined argument in which they contend that they were not properly served with the summons and, consequently, that the jurisdictional judgment is invalid. Parents posit that DHS was required to use one of the specific methods listed in ORS 419B.823(1) to (5) to serve them. Parents understand the court to have ordered alternative service of summons and note that, under ORS 419B.824(5), alternative service can be ordered only if parents cannot be served as provided in ORS 419B.823(1) to (4). Consequently, they argue, because DHS had not attempted to serve them using the methods specified in ORS 419B.823(1) to (4), the court lacked authority to authorize the use of alternative service under ORS 419B.823(5). They conclude, therefore, that DHS did not serve them with the summons using any of the methods authorized in ORS 419B.823 and, hence, that the juvenile court erred in entering the jurisdictional judgment.

DHS responds with two arguments. First, it contends that parents' argument is unpreserved because, to preserve their argument, parents were required to move under ORS 419B.923 to set the jurisdictional judgment aside. We reject that argument without written discussion. On the merits, DHS asserts **[**929]** that ORS 419B.823 requires only that DHS serve parents with the summons "in a manner reasonably calculated * * * to apprise the person served" **[*222]** of the juvenile court proceeding. DHS contends that the methods that it used to serve parents with the summons were reasonably calculated to do that and, hence, that its service of summons complied with ORS 419B.823.

ORS 419B.823 and ORS 419B.824 were enacted in 2001 as part of a bill introduced on behalf of the Oregon Law Commission's Juvenile Code Revision Work Group, which had undertaken the task of rewriting the juvenile code. See Tape Recording, Senate Judiciary Committee, HB 2611, Apr 30, 2001, Tape 114, Side A (testimony of Sen Kate Brown, member of Oregon Law Commission's Juvenile Code Revision Work Group). The work group modeled ORS 419B.823 and ORS 419B.824—the statutes that govern service of process in dependency cases—on ORCP 7 D—the rule that governs the service of process in most civil cases. See Testimony, Senate Judiciary Committee, HB 2611, Apr 30, 2001, Exhibit I, "Section by Section Analysis: House Bill 2611-1" (in connection with statement of Kathie Osborn) (stating that the introductory paragraph of ORS 419B.823 was "taken from ORCP 7 D(1)" and that ORS 419B.823(1) to (3) were taken from ORCP 7D(2)).

The Supreme Court had earlier explained in *Baker v. Foy*, 310 Ore. 221, 797 P2d 349 (1990), the relationship between the requirement in ORCP 7 D(1) that service be made in a manner reasonably calculated to apprise a party of the pendency of a proceeding and the service methods listed in ORCP 7 D(2) that may be used to effect service:

"ORCP 7 D(1) sets forth a 'reasonable notice' standard for determining adequate service of summons: 'Summons shall be served * * * in any manner reasonably calculated, under all circumstances to apprise the defendant of the existence and pendency of the action and to afford a reasonable opportunity to appear and defend.' * * * Rather than requiring a particular manner of service to satisfy the standard of adequate service, the rule endorses the process of examining the totality of the circumstances, to determine if the service of summons was reasonably calculated to provide defendant with notice of the action and reasonable opportunity to appear and defend.

"To provide guidance for types of service that may meet the 'reasonable notice' standard of adequate service, ORCP 7 D(1) [*223] lists specific methods of service of summons. The particular methods of service described in ORCP 7 D(2) are methods which *may* be used. They are not exclusive. Absolute compliance with one of the methods of service specified in ORCP 7 D(1) is, therefore, not required for adequate service of summons on an individual defendant. What is mandatory is that whatever manner or method of service is employed by a plaintiff, it must satisfy the afore-mentioned 'reasonable notice' standard of adequate service of ORCP 7 D(1)."

310 Ore. at 224-26 (emphases in original; footnotes and citations omitted). Because ORS 419B.823 and ORS 419B.824 are modeled on ORCP 7 D, we conclude that the principles articulated by the court in *Baker* apply equally to ORS 419B.823 and ORS 419B.824.³ Hence, we reject parents' argument that DHS had to serve them using one of the service methods listed in ORS 419B.823 in order for the service to be valid. Rather, given that DHS did not serve the [*930] summons in this case using the methods enumerated in ORS 419B.824(1) to (5), we must determine whether the methods that it did use met the requirements of due process. See *Lake Oswego Review v. Steinkamp*, 298 Ore. 607, 613, 695 P.2d 565 (1985) ("[ORCP 7 D(1)] states that the service 'shall' meet the federal due process standard.").

Due process requires that interested parties receive "notice reasonably calculated, under all circumstances, to apprise [them] of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314, 70 S Ct 652, 94 L Ed 865 (1950). The "notice required will vary [*224] with circumstances and conditions." *Walker v. Hutchinson*, 352 U.S. 112, 115, 77 S Ct 200, 1 L Ed 2d 178 (1956). "[T]he constitutionality of a particular procedure for notice is assessed *ex ante*, rather than *post hoc*." *Jones v. Flowers*, 547 U.S. 220, 231, 126 S Ct 1708, 164 L Ed 2d 415 (2006). Here, the record shows that DHS served parents with summons by posting it on the door to parents' home, by emailing it to parents, and by mailing it to them at their home. We turn to whether that service complies with the requirements of due process.

The United States Supreme Court has stated that service by posting a summons or similar notice on a dwelling will, in most cases, "offer [a] property owner sufficient warning of the pendency of [a] proceeding." *Greene v. Lindsey*, 456 U.S. 444, 452, 102 S Ct 1874, 72 L Ed 2d 249 (1982). The plaintiffs in *Greene* had been served with summons in forcible entry and detainer (FED) actions by posting copies of writs of forcible detainer on the doors to their apartments. The plaintiffs brought a class-action suit alleging that they had not received constitutionally adequate notice of the FED proceedings because notices posted on apartment doors were "not infrequently" torn down by children or other tenants. *Id.* at 453 (internal quotation marks omitted). Although the Court concluded that, in light of the history of the removal of posted summons in the community in *Greene*, posting did not meet the requirements of due process, the Court indicated that posting may nonetheless be sufficient to satisfy due process in other cases.

³ There are some minor differences between ORS 419B.823 and ORS 419B.824 and their counterpart, ORCP 7 D. For example, ORS 419B.823 has a separate subsection for each method of service that a party may use to serve another party, while ORCP 7 D(1) lists in a single subsection each method that a party may use. Additionally, there are some differences in how parties "may" effectuate service under the enumerated alternatives. For example, ORCP 7 D(2)(d)(i) states that, to serve a person by mail, a party may send the person a copy of the summons and complaint "by first class mail and by any of the following: certified, registered, or express mail with return receipt requested." In contrast, ORS 419B.824(4) states that, for mail service to be effective in a dependency case, the recipient must sign a receipt for the mail. However, those minor differences do not alter the fact that the legislature structured ORS 419B.823 and ORS 419B.824 to work the same way as ORCP 7 D and retained the same standard for determining the adequacy of service of summons.

See *id.* at 455. Here, nothing suggests that the summons, once posted on the door of parents' home, might be removed by someone other than parents. Furthermore, there is evidence that parents were visiting their home: the property had a sign directing people to stay away, parents' neighbors had told Garrett that parents were visiting the property at night, and parents had left their pets in the home. Those facts suggest that parents were regularly at their home and support a determination that posting the summons would provide parents with notice of the proceeding. However, we need not determine whether posting the summons on the door to parents' home, without more, would constitute constitutionally adequate notice, because DHS also used other means to serve parents with the summons.

[*225] Service of summons by mail can meet the due process standard for notice of a court proceeding. See, e.g., *Greene*, 456 U.S. at 455. However, service by mail in this case did not meet the statutory standard specified in ORS 419B.824(4), which states that service by mail in a dependency case "is not complete unless the person to be served signs a receipt for the mail." The mailing occurred here under circumstances in which it was unlikely that parents would accept delivery of certified mail sent to their home—DHS had previously tried and failed to contact parents at their home during the day, when mail carriers typically deliver certified mail. Mailing the summons and petition to parents nonetheless increased, even if only marginally, the likelihood that they would receive notice of the proceeding and, consequently, it makes it more likely that DHS met the due process standard for service of summons.

Finally, service of summons by email also may satisfy due process. See *Rio Properties, Inc. v. Rio Intern. Interlink*, 284 F3d 1007, 1017 (9th Cir 2002) ("Considering the facts presented by this case, we conclude not only that service of process by email was proper * * * but in this case, it was the method of service most likely to reach [defendant]."). By sending an email note with copies of the **[**931]** summons and petition to an email address at which DHS had recently exchanged email notes with father, DHS measurably increased the likelihood that parents would receive a copy of the summons and petition and, hence, notice of the pendency of the proceedings.

We recognize that whether parents received constitutionally adequate notice is a fact-specific determination. However, we conclude that, taken together, the methods that DHS used to serve parents were reasonably calculated to apprise them of the proceeding and, hence, that service met the due process standard embodied in the first sentence of ORS 419B.823. Therefore, we conclude that the trial court did not err in entering the jurisdictional judgment that was premised on service of summons on parents.

Affirmed.

End of Document